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File No: EXP202309529

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 4, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against GRIMEY WEAR, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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Procedure No: EXP202309529 (PS/00469/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 02/07/23, Mr. A.A.A. (hereinafter, the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity GRIMEY WEAR, S.L., with CIF: B86141272, (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant are as follows:

"On January 27, 2023, I requested the deletion of all my data associated with my account, and they responded on January 30, 2023, that they would pass it on to the responsible personnel. On April 23, 2023, I reminded them that they had not yet deleted my data, and they had already exceeded the legal deadline, providing me with evidence that this was done on April 25. To my surprise, since April 25, when it should not exist, I received two more emails from newsletters, one on June 21 and the other in July when it was supposed that they had already deleted my data."

Along with the complaint, the following documentation is attached:

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Dated January 27, 2023, a copy of the email sent by the complainant to the address store@grimey.com, requesting that all his data from the email account as well as all newsletters be deleted.

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Dated April 23, 2023, a copy of the email sent by the complainant to the address store@grimey.com with the following message:

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"It has been almost three months since I made the request to delete my data, and this has not been done as I can still log into the account. The legal deadline to carry out this process, as reflected in the data law, is one month from my request. When will the deletion of the account be carried out?"

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Dated April 25, 2023, a copy of the email received from the address store@grimey.com, indicating: "Hello A.A.A., We have forwarded this to the corresponding department."

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Dated April 25, 2023, a copy of the email received from the address store@grimey.com, indicating: "... we inform you that the account has been deactivated and our colleagues have unsubscribed you from the newsletter."

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Dated June 20, 2023, a copy of the email received from the address "Grimey" grimey@news.grimey.com, containing advertising messages.

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At the end of these emails, the following message can be read:

"For any inquiries, you can contact us by writing to store@grimey.com

Do you want to stop receiving these emails? You can modify your preferences <>"

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Dated June 21, 2023, a copy of the email sent by the complainant to the address grimey@news.grimey.com, with the following message:

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"Why did I receive this advertisement when I have a confirmation email from you stating that you removed me from your database in April? Due to your repeated non-compliance with the Data Protection Law, I will contact the AEGPD."

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Dated July 1, 2023, a copy of the email received from the address grimey@news.grimey.com, containing advertising messages.

o

At the end of these emails, the following message can be read:

"For any inquiries, you can contact us by writing to store@grimey.com

Do you want to stop receiving these emails? You can modify your preferences <>"

SECOND: On July 7, 2023, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to report, within one month, on what was stated in the complaint.

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The transfer, which was carried out in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), as certified by the Electronic Notifications Service and Electronic Address, was sent to the respondent on 07/07/23 via the electronic notifications service, "NOTIFIC@", and was accepted by the respondent on 10/07/23.

THIRD: On 03/08/23, this Agency received a written response from the respondent to the request made, in which they state the following:

"We are writing to you regarding the complaint received for alleged non-compliance with the GDPR on our web platform (grimey.com). Through this resource, we wish to present our arguments and explain the relevant facts surrounding this situation.

First of all, we would like to point out that our company, Grimey Wear, is currently in a transition period from one web platform to another. During this migration process, an unexpected situation occurred that resulted in the crossover of some data from old customers.

However, we want to emphasize that this data transfer was an isolated incident and does not reflect our usual data protection practices in any way. You can verify in our history that this is correct.

(However, upon reviewing the facts and evidence presented in the complaint, we accept and acknowledge the error made, and apart from apologizing, both to your organization and to the affected party, we can confirm that the necessary measures have already been taken and the problem has been completely resolved).

It is important to note that, due to the platform change, we currently do not have the subscription form available on our website (In particular, the registration of this customer was made in 2008). However,

we are diligently working to restore it as soon as possible.

Our main objective is to comply with legal requirements and ensure total transparency in the handling of our users' data, as we have done at all times since our online launch approximately 10 years ago. We would like to highlight that we are making more significant changes and making important investments in our platforms with the express purpose of preventing such incidents in the future and ensuring that we always operate within the limits of current legality.

We have implemented additional security and privacy measures to protect our users' information, and we are committed to safeguarding their personal data responsibly. (To this end, we have recently contracted the services of the Salesforce platform along with an external agency that will guide and advise us, which has the necessary tools for the control of absolutely all...)

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the data of our clients, as well as their proper management in order to ensure that we do not incur in this type of infringement or others again).

We appreciate your understanding in this matter and apologize for any concern or inconvenience this may have caused. In light of the above, we respectfully request that the isolated nature of the incident and the diligent approach we have adopted to address the situation be taken into account. We trust that our response to the incident demonstrates our commitment to the protection of personal data and our willingness to fully cooperate with the competent authorities. We appreciate your attention to this matter and hope that, after considering the described circumstances, the complaint can be reevaluated and our response and corrective actions taken can be taken into account.

P.S.: We attach screenshots of our registration and deregistration processes, as well as an excerpt from the Privacy Policy page on our website. Unfortunately, we do not have the client's registration data as all traces of their account with us have been completely deleted. It should be noted that the account was created in 2016 and that the registration system differed slightly from the current one, which was modified with the update of the Data Protection Law.

FOURTH: On 13/08/23, a new written communication from the claimant was received by this Agency, as an extension of their initial complaint, indicating the following:

Grimey Wear SL sent me a communication clearly stating that they had made a mistake regarding the data protection policy and that at the time they did not proceed to completely delete all the mailing lists associated with my account, assuring me, and I quote their exact words: "we have ensured that your data has been permanently deleted from our mailing lists. Our team has been retrained in the proper management of customer data and we are committed to maintaining high standards of data protection in the future." This confirmation email is dated July 26, 2023, but to my surprise, yesterday, August 11, I received another commercial communication when it was supposed that my data had already been deleted.

Along with this writing, the following documentation is attached:

- Dated 26/07/23, a copy of the email received from the address administracion@grimeywear.com indicating the following:

o "Dear customer, First of all, we want to express our sincerest apologies for the mistake we made regarding the data protection policy in our systems. We fully acknowledge our responsibility in this matter and deeply regret any inconvenience this may have caused you. We understand the importance of safeguarding the privacy and personal data of our clients, and we are very sorry that on this occasion we did not meet the standards you deserve and that we impose on ourselves.

The error that occurred in our systems resulted in our failure to completely delete all mailing lists associated with your account, despite your explicit request for deregistration. We acknowledge that this was a failure on our part and we have carefully reviewed our processes to ensure that it does not happen again in the future.

We want to emphasize that our intention has always been to maintain a close and respectful relationship with our clients, and we never intended to cause you any inconvenience. We have taken

this incident as an opportunity to learn and improve our systems, so that we can offer you a more reliable and secure service.

We have taken all necessary measures to completely resolve this particular case, and we have ensured that your data has been permanently deleted from our mailing lists. Our team has been retrained in the proper management of customer data and we are committed to maintaining high standards of data protection in the future.

Your satisfaction is our priority, and we sincerely hope that you can accept our apologies. We greatly appreciate your understanding. If you have any other concerns or questions, please do not hesitate to contact us. We are here to assist you with whatever you need. Again, thank you for your understanding."

- Dated 11/08/23, a copy of the email received from the address grimey@news.grimey.com, containing advertising messages.

FIFTH: On 02/10/23, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

LEGAL GROUNDS

I.

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

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The additional provision four "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II.

Summary of the events that occurred:

In the complaint submitted by the complainant, it is stated that on 27/01/23, he sent an email to the respondent requesting to exercise his right to delete all his personal data that may exist in the respondent's systems so that they would no longer send him commercial communications, and on 30/01/23, he received an acknowledgment of receipt indicating that "it will be passed on to the responsible personnel."

On 23/04/23, the complainant sent another email to the respondent reminding them that they had not yet deleted his personal data as he still had access to the system with his data and credentials, to which they responded that the deletion of his data would be carried out immediately. However, despite this, he received two more advertising emails on 21/06/23 and 01/07/23.

On 03/08/23, in response to the request made by this Agency, the respondent stated that the entity was in a transition period from one web platform to another when the events occurred and that during this migration process, an unexpected situation arose that resulted in the crossover of some old customer data, describing it as an isolated incident for which they apologized and guaranteed that such a situation would not happen again as they had implemented the necessary technical measures to prevent it.

In parallel, on 26/07/23, the complainant received an email from the respondent in which they apologized for the errors made and assured him that they had permanently deleted all his personal data from their mailing lists. However, on 11/08/23, the complainant received another advertising email

from the address grimey@news.grimey.com.

III

Prohibition of unsolicited or expressly authorized commercial communications

The LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is classified as a service of the information society and defined in its Annex as: "f) 'Commercial communication': any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activity."

Therefore, the concept of commercial communication, according to the previous definition, encompasses all forms of communications intended to promote, directly or indirectly, goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

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On the other hand, the LSSI in its Annex a) defines "Service of the Information Society" as "any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient."

The concept of "Service of the Information Society" also includes services that are not paid for by their recipients, to the extent that they constitute an economic activity for the service provider.

According to section d) of the aforementioned Annex, the recipient is the "natural or legal person who uses, whether or not for professional reasons, a service of the information society."

IV

Classification of the possible infringement committed by sending commercial communications without the prior consent of the affected party

The fact that the respondent sends advertising emails to the complainant after he has requested not to receive any more advertising may constitute a violation of the provisions established in Article 21 of the LSSI, which states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily include an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited."

V

Proposal and Graduation of Sanction

The aforementioned infringement is classified as "minor" in Article 38.4.d) of said regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic communication means when such communications..."

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shipments do not meet the requirements established in Article 21 and do not constitute a serious infringement.”

In accordance with the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

Based on the evidence obtained, and without prejudice to the outcome of the investigation, it is considered appropriate to adjust the sanction to be imposed according to the following aggravating criteria established in Article 40 of the LSSI:

- The existence of intent (paragraph a), since the complainant had requested on two occasions that no further commercial communications be sent to them via email, and the entity being complained about had acknowledged receipt of their request, confirming that it had been addressed, even confirming it before this Agency, and despite this, subsequently sent them a new advertising email.

In accordance with these criteria, it is deemed appropriate to impose an initial sanction of €5,000 (five thousand euros) for the infringement of Article 21.1 of the LSSI, without prejudice to the outcome of the investigation of the procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity GRIMEY WEAR, S.L., with CIF: B86141272 for the violation of Article 21 of the LSSI, classified as minor in Article 38.4.d).

SECOND: TO APPOINT R.R.R. as Instructor, and S.S.S. as Secretary, if applicable, indicating that either of them may be challenged, if necessary, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, all of which are part of this administrative file.

FOURTH: THAT, for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €5,000 (five thousand euros) for the infringement of Article 21 of the LSSI, without prejudice to the outcome of the investigation of the present sanctioning procedure.

FIFTH: TO NOTIFY this agreement to initiate the sanctioning file to the entity CARSO TRADING, S.L., granting a hearing period of ten working days for them to submit any allegations and present any evidence they deem appropriate.

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If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, if the sanction to be imposed is a fine, you may acknowledge your responsibility within the period granted for making allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure, which in this case amounts to 1,000 euros. With the application of this reduction, the sanction would be set at 4,000 euros, concluding the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be set at 4,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations regarding the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be

set at 3,000 euros (three thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

If you choose to proceed with the voluntary payment of any of the amounts indicated above (4,000 euros or 3,000 euros), you must make it effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at Banco CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering. You must also send the proof of payment to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 43.2 of the LSSI.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the proceedings. You are informed that you can identify an email address before this Agency to receive notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On December 15, 2023, the respondent has proceeded to pay the sanction in the amount of 3,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations regarding the initiation of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the...

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competences assigned to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competences assigned to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202309529, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to GRIMEY WEAR, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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